

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****PATRICK SANDER,**

Plaintiff,

-against-

**OFFICER HECTOR FIGUEROA;
OFFICER CHRISTOPHER ARENA;
OFFICER ANTHONY PRESTO;
DETECTIVE JONATHAN CANNIZZARO,**

Defendants.

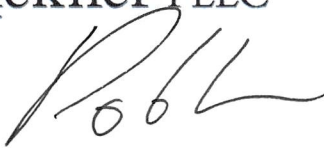
Index No.:

SUMMONSPlaintiff designates New York
County as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
January 11, 2022**Rickner PLLC**By: 

Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****PATRICK SANDER,**

Plaintiff,

-against-

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OFFICER CHRISTOPHER ARENA;
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Defendants.

Index No.:

VERIFIED COMPLAINT

Plaintiff PATRICK SANDER, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorneys’ fees is authorized pursuant to 42 U.S.C. § 1988.

4. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

5. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

6. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

7. Plaintiff is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

8. Defendant Officer Hector L. Figueroa (Shield No. 16620 or 11381, Tax ID No. 955915) (hereinafter "Figueroa") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

9. Officer Figueroa is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

10. Officer Figueroa is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

11. Defendant Officer Christopher J. Arena (Shield No. 7683 or 11899, Tax ID No. 954498) (hereinafter "Arena") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

12. Officer Arena is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

13. Officer Arena is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

14. Defendant Officer Anthony M. Presto (Shield No. 4263, Tax ID No. 954244) (hereinafter "Presto") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

15. Officer Presto is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

16. Officer Presto is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

17. Defendant Detective Jonathan Cannizzaro (Shield No. 4787 or 4278) Tax ID No. 951588) (hereinafter "Cannizzaro") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

18. Det. Cannizzaro is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

19. Det. Cannizzaro is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

20. Collectively, Officers Figueroa, Arena, Presto, and Det. Cannizzaro are referred to as the “Individual Defendants.”

21. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

22. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

23. On January 12, 2019, Plaintiff was lawfully driving in the vicinity of First Avenue and East 124th Street in Manhattan when he was pulled over, without probable cause, by the Individual Defendants, who were in an unmarked police car.

24. The Individual Defendants approached Plaintiff’s car, reached into the vehicle, and began assaulting and battering Plaintiff, using excessive and unnecessary force, while other officers attempted to break in through one of the windows.

25. Plaintiff was pulled from the car, detained, and arrested by the Individual Defendants without probable cause, and again assaulted and battered him, employing excessive force.

26. The Individual Defendants refused to provide Plaintiff with medical treatment.

27. Plaintiff was detained as a result of the Individual Defendants' actions the 25th Precinct, 36th Precinct, and Central Booking, during which time he was strip searched multiple times.

28. The Individual Defendants initiated prosecution without probable cause and using false evidence and statements, in the criminal action designated *People v. Sander*, Case No. 2019NY002289, Criminal Court, New York County. These wrongful charges were dismissed in their entirety in favor of Plaintiff.

THE INDIVIDUAL OFFICERS' HISTORY OF MISCONDUCT

29. The Individual Defendants have a history of violating people's civil rights while employed by the NYPD.

30. For example, Officer Hector Figueroa has been repeatedly accused of flaunting his duties by engaging in unlawful searches and seizures, including at least one substantiated Civilian Complaint Review Board ("CCRB") finding that he engaged in an unlawful search of a vehicle, and another civilian complaint alleging excessive force, which resulted in litigation.

31. Officer Christopher Arena has also been accused of using excessive physical force, including at least one civil rights lawsuit as well as substantiated charges of abusing his power during a vehicle stop in addition to using physical force.

32. Just three months after assaulting Plaintiff, Officer Anthony Presto was again accused of using unlawful excessive force during a stop, which led to a civil lawsuit alleging the same.

33. Detective Jonathan Cannizzaro has been a named defendant in at least two federal civil rights lawsuits, both of which accused him of unlawful searches and seizures. In one case, *Stelling v. City of New York*, Case No.15-cv-00035 (E.D.N.Y. 2015), Cannizzaro arrested a

driver without probable cause and initiated a wrongful prosecution based on false information. Similarly, in *Goldsborough v. City of New York et al.*, Case No. 17-cv-0072 (S.D.N.Y. 2017), Carrizozo is alleged to have pulled up in an unmarked car and harassed a man who was drinking a soda while walking down the street after attending a wake. Carrizozo accused the man of drinking alcohol, grabbed and poured out the soda, looked at the Plaintiff identification, and left. Det. Cannizzaro was nevertheless elevated to Detective in June 2021.

**FIRST CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. The Individual Defendants used physical force against Plaintiff.

36. Plaintiff's seizure and detention at the hands of the Individual Defendants was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and unconstitutional.

37. Even assuming arguendo that Plaintiff's arrest was lawful, the Individual Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to plaintiff.

38. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

39. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

40. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

42. The Individual Defendants restrained and arrested Plaintiff without probable cause.

43. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

44. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

45. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. The Individual Defendants initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

48. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

49. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

50. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FOURTH CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. The Individual Defendants provided false evidence and statements to the prosecution, defense counsel, and court, and withheld exculpatory evidence from the same.

54. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of due process and trial rights guaranteed under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution to be free from prosecution based on false statements and under *Brady v. Maryland*, 373 U.S. 83 (1963), and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

55. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**FIFTH CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

57. The Individual Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that they had opportunities to do so.

58. The Individual Defendants thereby displayed deliberate indifference to Plaintiffs rights, including Plaintiffs right to be free from unreasonable and unlawful searches and seizures.

59. The Individual Defendants also Defendants agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiff of clearly established civil rights.

60. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Constitution of the United States, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 USC § 1983.

61. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

62. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

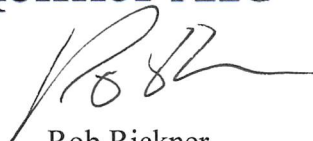
- a. Compensatory damages;
- b. Punitive damages;

- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
January 11, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Steet, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

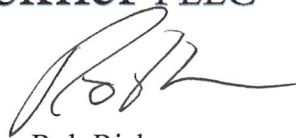
I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff .
- 2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
January 11, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Steet, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff